
Case 25JU04261

4 messages

Scott A. Johnson <Scott.A.Johnson@ojd.state.or.us>
To: "ashlepenn.ap3@gmail.com" <ashlepenn.ap3@gmail.com>

Wed, Mar 11, 2026 at 5:03 PM

Good afternoon Miss Penn,

I wanted to remind you that email is not the correct method to submit documents into a juvenile case. You are encouraged to submit them through guide & file which has been used by you previously. Or you may submit in-person at the juvenile department.

ORS 45.400 Remote location testimony; when authorized; notice; payment of costs. (1) A party to any civil proceeding or any proceeding under ORS chapter 419B may move that the party or any witness for the moving party may give remote location testimony.

(2) A party filing a motion under this section must give written notice to all other parties to the proceeding sufficiently in advance of the trial or hearing at which the remote location testimony will be offered to allow the nonmoving party to challenge the factors specified in subsection (3)(b) of this section and to establish the factors specified in subsection (3)(c) of this section.

I read over your email and attachments and I have reached out to court analysts for further interpretation.

At the moment, what struck me from ORS 45.400 was:

“When authorized” speaks loudest – it implies that authorization is not guaranteed to anyone.

The moving party in a DHS juvenile dependency case would be DHS.

Submitting a proposed order immediately before a hearing does not comply with subsection 2 of ORS 45.400.

These are my initial findings and I am waiting for further dissection by court analysts. I am trying to get to the bottom of this and would like to have you involved in the case. The hearing from this afternoon has been reset for March 18th at 8:30am.

A letter will be sent out to you this afternoon. Please watch for it to arrive soon.

Regards,

Scott A. Johnson

Oregon Judicial Department

Supervisor - Juvenile & Domestic Relations

AshLe' Penn <ashlepenn.ap3@gmail.com>
To: "Scott A. Johnson" <Scott.A.Johnson@ojd.state.or.us>
Cc: "Kimberly A. Beck" <kimberly.a.beck@ojd.state.or.us>

Fri, Mar 13, 2026 at 4:54 PM

Mr. Johnson,

Thank you for your continued engagement on this matter.

NOTICE OF SPECIAL APPEARANCE

I am the biological mother of Al-mira Davis and I have not been served with lawful process in this proceeding which would grant this court's authority to adjudicate my parental right to the care and control of my child. This communication — and every filing associated with it — constitutes a special appearance only, made for the limited purpose of asserting my rights to telephonic participation, access to the case file, and the other relief named in the filing for which the March 18th hearing was set. Nothing herein shall be construed as a general appearance, a waiver of any objection to personal jurisdiction, subject matter jurisdiction, service of process, or notice, or a submission to this court's jurisdiction for any purpose beyond the specific relief requested.

I write to address three issues: (1) the governing authority for my telephonic appearance request; (2) the absence of any good cause finding supporting denial of my request and notice of telephonic appearance, as well as the non-evidentiary nature of the March 18th hearing; and (3) the court's obligation to accept and docket the filing submitted to Ms. Beck, as a clerk of the Juvenile Court, on March 11th.

I. THE GOVERNING AUTHORITY FOR TELEPHONIC APPEARANCE IN THIS PROCEEDING

You noted that ORS §45.400's phrase "when authorized" implies that authorization is not guaranteed. In response, I am compelled to note that such an authorization has already been granted, by the Presiding Judge of Washington County Circuit Court and by the Chief Justice of the Oregon Supreme Court. The question of whether telephonic appearance is available has already been resolved by this Court's Presiding Judge as well as Oregon's highest court.

A. Washington County Presiding Judge Order No. 343

Washington County Presiding Judge Order No. 343, issued February 15, 2024 by Presiding Judge Rebecca D. Guptill, is the operative local order governing remote appearances in this court. It was issued pursuant to Chief Justice Order No. 23-028 and supersedes all prior orders on this subject.

PJO 343, sets out the appearance requirements for juvenile dependency proceedings by hearing type. Review and permanency hearings are designated as "Optional in person or via Webex" — with *no motion required*, only advance notice with full contact information. I have provided both. The authorization that your email appears to suggest as being absent is, to the contrary, present — and has been embedded in the standing order of the Presiding Judge of this court.

B. Chief Justice Order No. 23-028

PJO 343 was issued pursuant to Chief Justice Order No. 23-028, which authorizes remote appearances in *all* Oregon circuit courts. The Chief Justice's Order is a statewide authorization. The Presiding Judge's Order is its local implementation. Together they constitute the "authorization" ORS §45.400 contemplates — and both are invoked here.

C. ORS §419B.918(1) — The Directly Applicable Statute

ORS §45.400 governs remote location testimony by *witnesses*. My request is not a request to testify. It is a request to participate in a procedural hearing in my capacity as the natural mother of Al-mira Davis, by special appearance only. That question is governed by ORS §419B.918(1), which provides that any person may, on timely written motion showing good cause, participate in a juvenile dependency hearing by telephonic or other electronic means in lieu of personal appearance. My entitlement to invoke ORS §419B.918(1) flows from my status as Mother, alone.

As in my case, the agency and the court have not lawfully provided me with service of summons or petition in this matter and as such, do not have jurisdiction personally over me at this time to require an in-court appearance to adjudicate a motion filed by me that is requesting access to the case file and submitting in the fourth instance (with the first being the special appearance made the day of the shelter hearing) a challenge to this court's jurisdiction.

My entitlement to invoke ORS §419B.918(1) flows from my status as Mother — a status that exists independent of whether this court has obtained personal jurisdiction over me through lawful service. I invoke that right here without waiving any jurisdictional objection.

Your email suggested that the moving party in a DHS juvenile dependency case is DHS. DHS is the petitioner. I am the moving party on my own motions — the motion to compel, the objection to proceeding, and the motion to vacate. ORS §419B.918(1) authorizes "a person" to seek telephonic participation. It does not confine that right to the petitioner.

D. UTCR 5.050 and the 2022–2025 Amendments

UTCR 5.050, as amended effective August 1, 2022, establishes that a request for remote appearance at a non-evidentiary civil hearing is presumptively granted. The court must identify an affirmative, case-specific reason to deviate from that presumption — rather than my being required to support the invocation of any remote appearance.

E. HB 2461 (Effective January 1, 2026)

HB 2461 amended ORS §45.400 to replace the prior 30-day notice requirement with a "sufficiently in advance" standard, and expressly identified unrepresented parties as among those for whom remote access is most critical. I am unrepresented. This motion is filed five days before the March 18th hearing. The timing concern your email raised regarding the March 11th filing is moot for March 18th's proceeding, and in any event, that filing was submitted as soon as practicable upon my discovery of the court's notice error in having transposed the digits of my address — there was no earlier moment at which it could have been filed.

F. Summary on Authorization

To address your three observations directly:

You highlighted in your email that remote appearances are permitted "When authorized" and to this I take no issue. It must be noted, though, that the authorization to which it appears you refer already exists here in three independent forms: PJO 343 (which designates this hearing type as available via Webex without a motion), Chief Justice Order No. 23-028 (statewide authorization), and ORS §419B.918(1) (statutory authorization for party appearance by remote means in all ORS §419B proceedings). The presumption in favor of telephonic appearance is established. It must be rebutted by good cause. None has been identified.

"The moving party in a DHS juvenile dependency case would be DHS." To reiterate, DHS is the petitioner. I am the moving party on my own motions. ORS §419B.918(1) authorizes any person to seek telephonic participation — not only the petitioner.

"Submitting a proposed order immediately before a hearing does not comply with ORS §45.400(2)." Correct as applied to ORS §45.400 but the same is inapplicable to ORS §419B.918(1), UTCR 5.050, and PJO 343, none of which contain an equivalent requirement. And as noted earlier, the timing of the March 11th filing was a direct consequence of the court's own notice error.

II. NO GOOD CAUSE HAS BEEN IDENTIFIED TO DENY TELEPHONIC APPEARANCE

A. The Presumption Must Be Rebutted — It Has Not Been

The combined effect of PJO 343, Chief Justice Order No. 23-028, ORS §419B.918(1), UTCR 5.050, and HB 2461 is that telephonic appearance in the upcoming scheduled proceeding is, or the court should ensure is, *presumptively* available. That presumption can be overcome — but only by a specific, articulable, case-based finding of good cause. The only basis offered to date is that the hearing is "evidentiary." That characterization is not supported by the content of the motions that generated it and no testimony is required for the motion to be heard on its merits.

B. This Hearing Is Non-Evidentiary

An evidentiary hearing is one at which sworn testimony is taken and exhibits are admitted to resolve disputed facts. The March 18th hearing has been set pursuant to motions I filed. Its agenda is entirely legal and procedural:

- The motion to compel asks the court to apply ORS §419B.875(2)(a) and ORS §419A.255 to an undisputed factual record. It is a question of statutory entitlement requiring no testimony.
- The objection to proceeding raises jurisdictional and notice defects on the existing record. No testimony required.
- The motion to vacate presents a legal question on the existing record. No testimony required.

No witnesses will be called. No exhibits will be admitted. No credibility determination will be made. The procedural prerequisites for an evidentiary hearing — witness lists, exhibit lists, advance disclosure under ORS §419B.881 — have not been observed, because this is not an evidentiary hearing.

C. The Equities Favor Granting the Motion

Granting telephonic appearance causes no prejudice to any party. The state will present legal argument. So will I — by telephone rather than in person. The medium does not affect the substance of that exchange.

The court's repeated insistence on in-person appearance — in the context of a case in which the court has been notified that an outstanding criminal warrant exists — must be examined against the procedural record that generated that warrant. That warrant issued at a hearing held without constitutionally adequate notice, on conditions of release that were never imposed in the subsequently superseded case, through an information chain that this court has no independent authority to evaluate. A dependency court presented with a criminal warrant it cannot independently assess has not been presented with a finding of parental unfitness — it has been presented with an instrument of uncertain validity whose bearing on this child's welfare has never been identified by any party. Requiring a parent to choose between physical appearance and arrest — in a dependency proceeding that itself lacks jurisdiction because no petition or summons has been served — is not a procedure designed to resolve the dependency. It is a procedure designed to ensure the parent cannot participate in it. In-person appearance under these documented circumstances produces arrest before adjudication — which is the functional equivalent of no participation at all. The Constitution does not require a parent to surrender her liberty as the price of participating in a proceeding that has no jurisdiction to adjudicate her rights in the first instance. The statutory right to remote participation exists precisely to ensure that procedural circumstances beyond a one's control do not operate as a constructive bar to access. Those circumstances are present here.

To be precise, the motion to compel arises from this court's direction that I may only inspect the case file in-person, without copies. ORS §419B.875(2)(a) grants parents the right to copies of petitions, motions, and other papers. ORS §419A.255(1)(b)(F) and (c) confirm that a parent may both inspect and copy the record of the case. Neither statute authorizes converting that right into one conditioned on physical appearance. Without copies, I cannot review the petition, summons, and returns of service with particularity; identify inconsistencies in the record; prepare written objections; or seek appellate assistance — the very purpose for which I requested the file. The restriction does not limit the right. It defeats it.

III. THE STATUTORY FRAMEWORK: ACCESS IS A RIGHT, NOT A PRIVILEGE

A public records request under ORS §419A.255 is not a motion submitted to the court for the court's discretionary review. It is a statutory demand directed to the custodian of records — the clerk — who has a ministerial, nondiscretionary obligation to produce records to enumerated authorized parties. A parent is an enumerated authorized party under ORS §419A.255(1). The clerk does not need the judge's permission to comply with a statutory mandate. The judge does not sit as an appellate reviewer of the clerk's obligations under the Public Records Law.

IV. THE DENIAL WAS ULTRA VIRES

When the court withheld the records pending the judge's permission, it converted a ministerial statutory obligation into a discretionary judicial act. Those are not the same thing. The denial is not a ruling on a motion — it is an unlawful interference with a statutory right.

V. THE MOTION IS DIRECTED TO THE CLERK, NOT THE COURT'S DISCRETION

The motion filed that is the issue of March 18th's proceeding is not a motion asking the court to reconsider a discretionary ruling. It compels the clerk to discharge a nondiscretionary statutory obligation that has not been lawfully suspended. The court is not the decision-maker on a public records request submitted under ORS §419A.255. The clerk is. If the court wishes to intervene in the clerk's compliance with a statutory mandate, it must: identify a specific statutory exception by name; make written findings on the record establishing that the exception applies to these records; and issue a written order specifying which records are withheld and on what basis. None of those steps have occurred. Until they do, the clerk's obligation to produce remains operative and unaffected by any informal communication from the bench.

VI. RELIEF REQUESTED

The clerk of this court is required to produce the complete case file for this matter in this instance—including all filings, orders, hearing records, DHS reports, and communications in the court's possession — forthwith, without condition of in-person inspection, and without further delay. To the extent any document is withheld, Mother requests a written index identifying each withheld document, the specific statutory exception claimed, and the findings supporting that claim, as required before any exception to ORS §419A.255 access may lawfully be invoked.

A. A Written Order Is Requested

In the absence of a valid good cause finding, the presumption established by the foregoing authorities should be observed. I respectfully request a written, reasoned order on this motion so that appellate rights may be preserved in the event of denial.

VII. THE CLERK'S OBLIGATION TO ACCEPT AND DOCKET THE MARCH 11TH FILING

On March 11, 2026, I submitted a filing to the juvenile clerk email address listed on the Washington County Juvenile Department's own website. Ms. Beck responded that the court could not accept emailed motions and that filings must be submitted electronically.

ORS §419B.851(5) provides that papers must be filed with the *clerk of the court*, and that the clerk *shall* accept any filing that is legible and bears the name of the court, the title of the cause, the names of the parties, and the name of the filing party. The statute identifies no further condition. It does not require submission through a particular electronic portal. My filing satisfied every statutory requirement.

The acceptance of a conforming filing is a ministerial act — performed as the law prescribes, without the exercise of discretion. An administrative preference for a particular submission platform does not override a statutory obligation.

ORS §419B.851(7)(a) further provides that service may be made by electronic mail upon confirmation of receipt. Ms. Beck's reply is documented confirmation that the filing reached the court. This rejection is also consistent with a documented pattern: a prior written filing was discarded by the clerk without docketing. A parent's right to file documents in a proceeding affecting her fundamental right to the care and custody of her child cannot be conditioned on the use of a particular platform when that platform is not the exclusive method the statute authorizes.

I request that the March 11th filing, included here again for ease of access, be accepted, docketed, and date-stamped as of the time of Ms. Beck's confirmed receipt, and that the court confirm in writing that future conforming filings will be accepted without rejection.

I appreciate your attention to these matters and your stated commitment to having me involved in this case. I remain available at (424) 242-3374.

Mother expressly preserves all objections to personal jurisdiction, subject matter jurisdiction, service of process, venue, and notice. This communication constitutes a special appearance only and shall not be construed as a general appearance or a waiver of any jurisdictional defense for any purpose.

Respectfully,

/s/ AshLe' Penn

In Propria Persona

17548 NW Springfield Road, Unit 9

Portland, OR 97229

(424) 242-3374

[Quoted text hidden]

2 attachments

 **Proposed_Order_Telephonic_Appearance_3-11-26 (1).pdf**
341K

 **final telephonic appearance.pdf**
66K

AshLe' Penn <ashlepenn.ap3@gmail.com>
To: alquandavis@hotmail.com

Mon, Mar 16, 2026 at 10:22 PM

Indeed it is...
[Quoted text hidden]

2 attachments

 **Proposed_Order_Telephonic_Appearance_3-11-26 (1).pdf**
341K

 **final telephonic appearance.pdf**
66K

AshLe' Penn <ashlepenn.ap3@gmail.com>
To: Helpless inlove <helplessinlove242@gmail.com>

Wed, Mar 18, 2026 at 10:58 AM

[Quoted text hidden]

2 attachments

 **Proposed_Order_Telephonic_Appearance_3-11-26 (1).pdf**
341K

 **final telephonic appearance.pdf**
66K